



SPONSOR: Sen. Hocker & Rep. Carson
Sens. Buckson, Lawson, Pettyjohn, Richardson, Wilson;
Reps. Bolden, Collins, D. Short

DELAWARE STATE SENATE
153rd GENERAL ASSEMBLY

SENATE BILL NO. 177

AN ACT TO AMEND TITLE 29 OF THE DELAWARE CODE RELATING TO A TRANSPORTATION APPEALS BOARD.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

1 Section 1. Amend Chapter 84, Title 29 of the Delaware Code by making deletions as shown by strike through and
2 insertions as shown by underline as follows:

3 § 8423. Establishment of Transportation Appeals Board; members; terms; removal; quorum.

4 (a) The Transportation Appeals Board ("Board") is hereby created. The Board is a quasi-judicial review board that
5 is constituted to hear appeals of decisions of the Department.

6 (b) The Board consists of 7 Delaware residents who are appointed by the Governor with the advice and consent of
7 the Senate. The Governor shall appoint 2 members from each county and shall appoint a Chair who may reside in any
8 county and who serves at the Governor's pleasure. No more than a simple majority of the Board may be of one political
9 party.

10 (c) The Board shall annually elect a Vice-Chair and other officers as it deems necessary from among its members.

11 (d) Each member of the Board is appointed for a term of up to 3 years and may serve no more than 2 consecutive
12 full terms. The Governor may initially appoint a member for a term of less than 3 years to ensure terms expire on a
13 staggered basis.

14 (e) A member of the Board receives no compensation but may be reimbursed for the member's actual and
15 necessary expenses incurred in the performance of the member's official duties.

16 (f) The Governor may remove a member of the Board for gross inefficiency, misfeasance, nonfeasance,
17 malfeasance, or neglect of duty in office.

18 (1) A member is deemed in neglect of duty in office if the member is absent from 3 consecutive Board
19 meetings without good cause or fails to attend at least 50% of all regular Board meetings in a calendar year.

20 (2) A member who is deemed in neglect of duty is deemed to have resigned.

21 (g) The Governor shall fill any vacancies in Board membership for the remainder of the unexpired term.

22 (h) A member of the Board with a personal or private financial interest in the outcome of an appeal before the
23 Board is disqualified from any consideration of that matter and must inform the Chair, who must note such interest on the
24 record of the hearing.

25 (i) A majority of the members must be present at a Board meeting in order to have a quorum and conduct official
26 business. A vacancy on the Board is not counted for quorum.

27 (j) The Board may issue a subpoena for a witness and compel the witness's attendance or compel the production of
28 a document, book, record, paper, or other object that may be necessary or proper for the purpose of deciding an appeal.
29 Testimony taken under subpoena must be given under oath subject to the penalties of perjury and must be reduced to
30 writing.

31 (k) The Board may administer oaths to witnesses and conduct prehearing conferences for the simplification of
32 issues by consent, for the disposal of procedural requests or disputes, or to regulate and expedite the course of a hearing.

33 (l) The Board may adopt procedural rules to carry out its functions under §§ 8423 through 8425 of this title.

34 (m) The Department shall provide reasonable staff support to assist the Board in performing its duties under §§
35 8423 through 8425 of this title.

36 § 8424. Appeals to Transportation Appeals Board.

37 (a) A person whose interest is substantially affected by an action of the Department may appeal to the
38 Transportation Appeals Board within 20 days after receipt of the Department's decision or publication of the decision. The
39 Board shall conduct a public hearing for the appeal in accordance with Chapter 101 of Title 29. Deliberations of the Board
40 may be conducted in executive session.

41 (b) When the Board receives an appeal, the Board shall schedule a hearing within 30 days following the receipt of
42 the appeal. The Board shall conduct a hearing within 180 days following the receipt of the appeal. The Board may verbally
43 announce its decision at the conclusion of the hearing. A written decision must be mailed to the parties by certified mail
44 within 90 days after the completion of the hearing. If the Board fails to conduct the hearing or to issue the written decision
45 as required, the decision of the Department is considered a final decision for the purposes of appeal.

46 (c) The record before the Board on appeal must include the entire record before the Department. Each party to the
47 appeal may appear personally or by counsel at the hearing and may produce any competent evidence on that party's behalf.
48 The Board may exclude evidence that is plainly irrelevant, immaterial, insubstantial, cumulative, or unduly repetitive, and
49 may limit unduly repetitive proof, rebuttal, and cross-examination.

50 (d) The burden of proof in an appeal is upon the appellant to show that the Department's decision is not supported
51 by the evidence on the record before the Board. The Board may affirm, reverse, or remand with instructions an appeal of a
52 case decision before the Department.

53 (e) An appeal of a regulation must be on the record before the Department. The Board may hear new evidence if it
54 is relevant to or clarifies an issue in the record before the Department. The Board may exclude new evidence that is plainly
55 irrelevant, immaterial, insubstantial, cumulative, or unduly repetitive. A regulation is presumed valid, and the burden is
56 upon the appellant to show that the regulation is arbitrary and capricious, or adopted without a reasonable basis in the
57 record. The Board shall take due account of the Department's experience and specialized competence and of the purposes
58 of this chapter in making its determination. The Board may affirm, reverse, or remand any appeal of a regulation that the
59 Department promulgates.

60 (f) Each member of the Board who votes must indicate the nature of the member's vote in the written decision.

61 (g) There may be no appeal of the Department's decision to deny a permit on a matter involving state-owned land,
62 including subaqueous lands, except for an appeal based on the sole ground that the decision was discriminatory in that the
63 applicant, whose circumstances are like or similar to those of other applicants, was not afforded like or similar treatment.

64 (h) An appeal under this section does not automatically stay an action of the Department, but upon application and
65 for good cause, the Department or the Court of Chancery may stay the action pending disposition of the appeal.

66 (i) After an appeal is filed with the Board, the parties may, by stipulation, proceed directly to Superior Court, in
67 which case the Court may affirm, reverse, or remand the Department's decision based on the record before the Department
68 and the Board and other evidence the parties may submit by stipulation. The standard of review for an appeal is governed
69 by subsections (d) and (e) of this section.

70 (j) If the Board concludes that an immediate or expedited review of a decision of the Department is appropriate or
71 necessary, the Board may hold a public hearing on the appeal at the earliest possible time and issue a decision on the
72 appeal. If the Board concludes that an immediate or expedited review of a decision of the Department is appropriate or
73 necessary, the notice requirements of this section and of Chapter 101 of Title 29 do not apply, and the Board shall give
74 advance notice of the hearing only to the extent reasonably possible.

75 § 8425. Appeals from the Transportation Appeals Board's decision.

76 (a) A person or an officer, department, board, or bureau of this State aggrieved by a decision of the Board may
77 appeal to the Superior Court ("Court") in and for the county in which the activity in question is wholly or principally
78 located. An appeal under this section must be made within 30 days of the receipt of the Board's written decision.

79 (b) The Court may affirm, reverse, or modify the Board's decision. The Court may not set aside the Board's
80 finding of fact unless the Court determines that the records contain no substantial evidence that would reasonably support
81 the findings. If the Court finds that additional evidence should be taken, the Court may remand the case to the Board for
82 completion of the record.

83 (c) An appeal under this section does not automatically stay an action of the Department. Upon application and for
84 good cause, the Board or the Court of Chancery may stay the action pending the disposition of the appeal.

85 Section 2. Amend § 10161, Title 29 of the Delaware Code by making deletions as shown by strike through and
86 insertions as shown by underline as follows:

87 § 10161. State agencies affected.

88 (a) This chapter shall apply only to the following agencies:

89 (51) Board of Home ~~Inspectors~~; and Inspectors;

90 (52) Board of Elevator ~~Mechanics~~; Mechanics; and

91 (53) Transportation Appeals Board.

SYNOPSIS

This Act creates a Transportation Appeals Board ("Board") within the Delaware Department of Transportation ("DelDOT"). The Board is a quasi-judicial body that hears appeals of DelDOT actions such as grants or denials of transportation-related permits. The Board consists of 7 members (2 from each county and a Chair) who are appointed by the Governor for terms of up to 3 years. The Governor is initially permitted to appoint members for less than 3 years to ensure that terms expire on a staggered basis. A Board member can serve no more than 2 consecutive full terms. This Act also adds the newly created Board to the list of agencies to which Chapter 101 of Title 29, regarding administrative procedures, applies.

In creating the Transportation Appeals Board, which is modeled on and intended to function like the Environmental Appeals Board in Title 7, this Act gives businesses and members of the public who are substantially affected by DelDOT actions a process by which they can appeal those actions. Under that process, a party aggrieved by a DelDOT decision has 20 days from receipt or publication of the decision to appeal to the Board. Within 30 days of receiving that appeal, the Board must schedule a hearing on the matter, which must be conducted within 180 days following the receipt of the appeal, and must be conducted in accordance with Chapter 101 of Title 29. The Board then has 90 days to give a written decision. If the aggrieved party disagrees with the Board's decision, that party may, within 30 days of the Board's decision, make an appeal to the Superior Court.

Author: Senator Hocker